

26STCV16628 26STCV16628

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Case Number: 26STCV16628 Hearing Date: September 14, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 14, 2026

Case Name: Harmon v. Mission School Transportation, Inc., et al.

Case No.: 26STCV16628

Matter: (1) Demurrer

(2) Demurrer; Motion to Strike

Moving Party: (1) Defendant Wayfinder Family Services

(2) The Help Group

Responding Party: Plaintiff Jill Harmon

Ruling: Wayfinder's Demurrer is sustained. Partial leave to amend.

Help's Demurrer is sustained. Partial leave to amend.

The Motion to Strike is denied as moot.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This action arises out of an incident occurring on January 26, 2024, in which Plaintiff Jill Harmon, a bus driver employed by Defendant Mission School Transportation, Inc., was allegedly battered and subjected to racial slurs by passenger Steven Galvan, an adult special-needs resident of Defendant Wayfinder Family Services ("Wayfinder"). Plaintiff was transporting Galvan to and from Defendant The Help Group ("Help").

Wayfinder's Demurrer

Plaintiff filed her Complaint on May 26, 2026, asserting 27 causes of action against various defendants. Ten of those causes of action are directed at demurring Defendant Wayfinder:

Violation of the Ralph Civil Rights Act (1st COA)

Violation of the Tom Bane Civil Rights Act (2nd COA)

Intentional Infliction of Emotional Distress (5th COA)

Negligence (6th COA)

Negligent Supervision and Control (7th COA)

Negligent Undertaking (8th COA)

Negligent Failure to Warn (9th COA)

Violation of the Unruh Civil Rights Act (23rd COA)

Premises Liability (24th COA)

Breach of Fiduciary Duty (25th COA)

Wayfinder now demurs to each of these claims for failure to state sufficient facts, arguing that the tort and statutory claims are barred by the applicable two-year statute of limitations (Code Civ. Proc. § 335.1), and that the civil rights and fiduciary duty claims fail to state sufficient facts to constitute a cause of action.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v.

Mirda (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

1. Statute of Limitations Bar (2nd, 5th, 6th, 7th, 8th, 9th, 23rd, and 24th Causes of Action)

Claims for personal injury, negligence, intentional infliction of emotional distress, premises liability, and statutory violations under the Bane Act and Unruh Act are subject to a two-year statute of limitations (Code Civ. Proc. § 335.1; Gatto v. County of Sonoma (2002) 98 Cal.App.4th 744, 754-760).

Plaintiff’s alleged injuries occurred during the assault on January 26, 2024. The statutory period expired on January 26, 2026. Plaintiff filed her Complaint on May 26, 2026—four months after the expiration of the statutory period.

To invoke the delayed discovery rule or fraudulent concealment to avoid a statute of limitations bar, a plaintiff must plead specific facts showing (1) the time and manner of discovery, and (2) the inability to have made earlier discovery despite reasonable diligence (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808; Grisham v. Phillip Morris U.S.A., Inc. (2007) 40 Cal.4th 623, 638). Conclusory allegations are insufficient (CAMSI IV v. Hunter Tech. Corp. (1991) 230 Cal.App.3d 1525, 1536–1537).

Plaintiff fails to plead any element of delayed discovery. The only facts pleaded are generalized and conclusory: “Plaintiff did not and could not reasonably discover, despite diligence, the full factual basis of her claims against non-employer Defendants and the full extent of Mission’s post-assault statutory violations until after information was belatedly disclosed, pieced together, or otherwise became reasonably available. The facts not known to Plaintiff at the time of the assault included the full extent of The Help Group’s and Wayfinder’s prior knowledge of Steven Galvan’s racist hostility and dangerous propensities Plaintiff discovered or reasonably could have discovered those facts only after persistent efforts to obtain the police report, demands for records, repeated follow-up communications, and the piecing together of information after Defendants delayed disclosure.”

Plaintiff does not specifically allege when she supposedly had suspicion of Wayfinder’s involvement or wrongdoing. Plaintiff does not allege the date of the police information or how it triggered a unique suspicion that did not exist earlier. On the contrary, Plaintiff was the subject of Galvan’s open attack shortly after picking Galvan up from Wayfinder. That put her on “inquiry notice” to investigate all potentially responsible parties connected to that pickup location—including Wayfinder. Moreover, Plaintiff affirmatively pleads that in October 2025 (months prior to the statutory deadline), she served detailed pre-litigation demands outlining the assault facts, student-profile failures, route risks, and disclosure demands (Compl. ¶ 53).

Accordingly, the 2nd, 5th, 6th, 7th, 8th, 9th, 23rd, and 24th Causes of Action are time-barred on their face. The Court will grant 20 days leave to amend.

2. Civil Rights Claims (1st, 2nd, & 23rd Causes of Action)

The Ralph Civil Rights Act (Civ. Code § 51.7) requires an allegation that the defendant committed or threatened violent acts against the plaintiff or their property (Austin B. v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 880–881). The Complaint contains no allegation that Wayfinder itself committed or threatened any violence against Plaintiff.

The Bane Act (Civ. Code § 52.1) requires interference with a constitutional right accomplished through threats, intimidation, or coercion (Jones v. Kmart Corp. (1998) 17 Cal.4th 329, 334). A failure to warn or failure to provide an escort does not constitute actionable threat, intimidation, or coercion under the statute.

The Unruh Civil Rights Act (Civ. Code § 51) prohibits discrimination in accommodations, advantages, facilities, or services offered by "business establishments". Plaintiff was assaulted on a vehicle owned by her employer while transporting a resident. Wayfinder was not operating as a business establishment providing accommodation or public service to Plaintiff.

Plaintiff argues that there is secondary liability for these claims based on Wayfinder's aiding and abetting via their escort and release decision-making. Liability for aiding and abetting an intentional tort or civil rights violation under California law requires two essential elements: (1) actual knowledge of the specific primary wrongdoer's unlawful conduct; and (2) substantial assistance or encouragement to the primary wrongdoer in committing that act. (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144; *Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1325–1326.)

Allegations that a defendant failed to prevent a crime, failed to warn the victim, or failed to enforce safety protocols constitute nonfeasance, not affirmative substantial assistance. (*Upasani v. State Farm General Ins. Co.* (2014) 227 Cal.App.4th 509, 519.) Here, Plaintiff's allegations against Wayfinder—releasing Galvan unescorted and failing to alert Plaintiff driver—amount entirely to passive omissions. Pleading that an institutional defendant failed to provide security, failed to warn a third-party driver, or failed to supervise a known volatile individual does not state facts showing Wayfinder affirmatively encouraged, incited, or assisted Galvan in executing the assault.

Moreover, " 'In the civil arena, an aider and abettor is called a cotortfeasor. To be held liable as a cotortfeasor, a defendant must have knowledge and intent A defendant can be held liable as a cotortfeasor on the basis of acting in concert only if he or she knew that a tort had been, or was to be, committed, and acted with the intent of facilitating the commission of that tort.' Of course, a defendant can only aid and abet another's tort if the defendant knows what 'that tort' is [T]he defendant must have acted to aid the primary tortfeasor 'with knowledge of the object to be attained.' " (*Casey*, supra, 127 Cal.App.4th at p. 1146, original italics, internal citations omitted; CACI no. 3610.)

While Wayfinder's alleged failure to follow safety protocols or disclose Galvan's history might raise questions of ordinary negligence or breach of administrative duty, negligence does not equate to intentional aiding and abetting. Plaintiff pleads no facts demonstrating that Wayfinder acted with the conscious object of aiding Galvan's racially motivated violence. In the absence of well-pled facts demonstrating that Wayfinder actively incited or intentionally facilitated the assault, the statutory threshold for secondary civil rights liability is not met.

The Demurrer is sustained as to these claims, without leave to amend.

3. Breach of Fiduciary Duty (25th Cause of Action)

To plead a cause of action for breach of fiduciary duty, a plaintiff must establish the existence of a fiduciary duty running directly to them (*Marzec v. CalPERS* (2015) 236 Cal.App.4th 889, 915). Plaintiff alleges that Wayfinder owed a fiduciary duty to Steven Galvan (Compl. ¶ 110). Plaintiff cannot assert a claim as an incidental third-party beneficiary to an alleged fiduciary duty owed to another (*Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 957). Leave to amend is denied on this claim.

In sum, the Demurrer is sustained. Leave to amend is denied as to the cause of action for breach of fiduciary duty and for the causes of action pursuant to the Ralph, Bane, and Unruh Acts. The Court grants 20 days leave to amend as to the remaining causes of action.

Help's Demurrer

Help now demurs to the 1st, 2nd, 5th, 6th, 7th, 8th, 9th, 23rd, 24th, and 25th causes of action for uncertainty and failure to state sufficient facts.

“Defendant The Help Group Child and Family Center [] is, and at all relevant times was, a California nonprofit corporation operating a special-needs educational program and campus in Los Angeles County, California, including the Westside/Culver City-area campus to which the route at issue transported students.” (Compl. ¶ 10.)

The analysis is the same as for Wayfinder's Demurrer. Plaintiff failed to plead civil rights claims against Help. Failing to warn or use an escort is not actionable conduct under the Ralph, Bane, or Unruh Acts. The Demurrer is sustained as to these causes of action, without leave to amend.

The Demurrer is sustained as to the fiduciary duty claim, without leave to amend, due to a failure to plead a fiduciary duty.

The Demurrer is sustained as to all other causes of action, with 20 days leave to amend, based on the statute of limitations and Plaintiff's failure to adequately invoke the delayed discovery rule.

Help's Motion to Strike

Given the ruling on the Demurrer, Help's Motion to Strike is denied as moot.

Moving party to give notice.